

Kanak Srivastava v. State of U.P. and others

Allahabad High Court · Division Bench · 21 May 2025 · 2025:AHC:85769-DB · WRIT - C No. - 16406 of 2025 · **Clause 6.5 order quashed; remanded for fresh hearing.**

HEADNOTE

An order under Clause 6.5 of the U.P. Electricity Supply Code, 2005, passed without hearing the consumer is liable to be quashed. On the licensee's concession, the High Court set aside the Executive Engineer's order and directed the consumer to appear on a fixed date so that a fresh order could be passed after opportunity of hearing and consideration of the material produced. Prayers to quash the bills and for meter correction or a new supply were not decided on merits.

FACTUAL SUMMARY

Kanak Srivastava challenged the Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited's order dated 25.03.2025 under Clause 6.5 of the U.P. Electricity Supply Code, 2005, together with electricity bills, and sought correction of dues and the meter plus a new meter and supply in her name. She alleged the Clause 6.5 order, though passed pursuant to an earlier High Court direction, was made without hearing. The Power Corporation agreed to fix a date and pass a fresh order after due opportunity.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

hearing before Clause 6.5 order

HOLDING

An order under Clause 6.5 of the U.P. Electricity Supply Code, 2005, passed without affording the consumer opportunity of hearing is liable to be quashed; the consumer shall appear before the Executive Engineer on a fixed date and a fresh order shall be passed after hearing and considering the material produced. ¶ 5-6

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 An order under Clause 6.5 of the U.P. Electricity Supply Code, 2005, passed without hearing the consumer is liable to be quashed.. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE IMPUGNED ELECTRICITY BILLS AND CORRECTION OF DUES AND METER

Certiorari against the bills and mandamus to correct dues and the meter were not decided; the dispute was remitted for a fresh Clause 6.5 order. ¶ 2,5-7

NOT DECIDED — NEW ELECTRICITY SUPPLY AND METER IN THE PETITIONER'S NAME

Mandamus for essential supply and installation of a new meter was neither granted nor refused on merits. ¶ 2,7